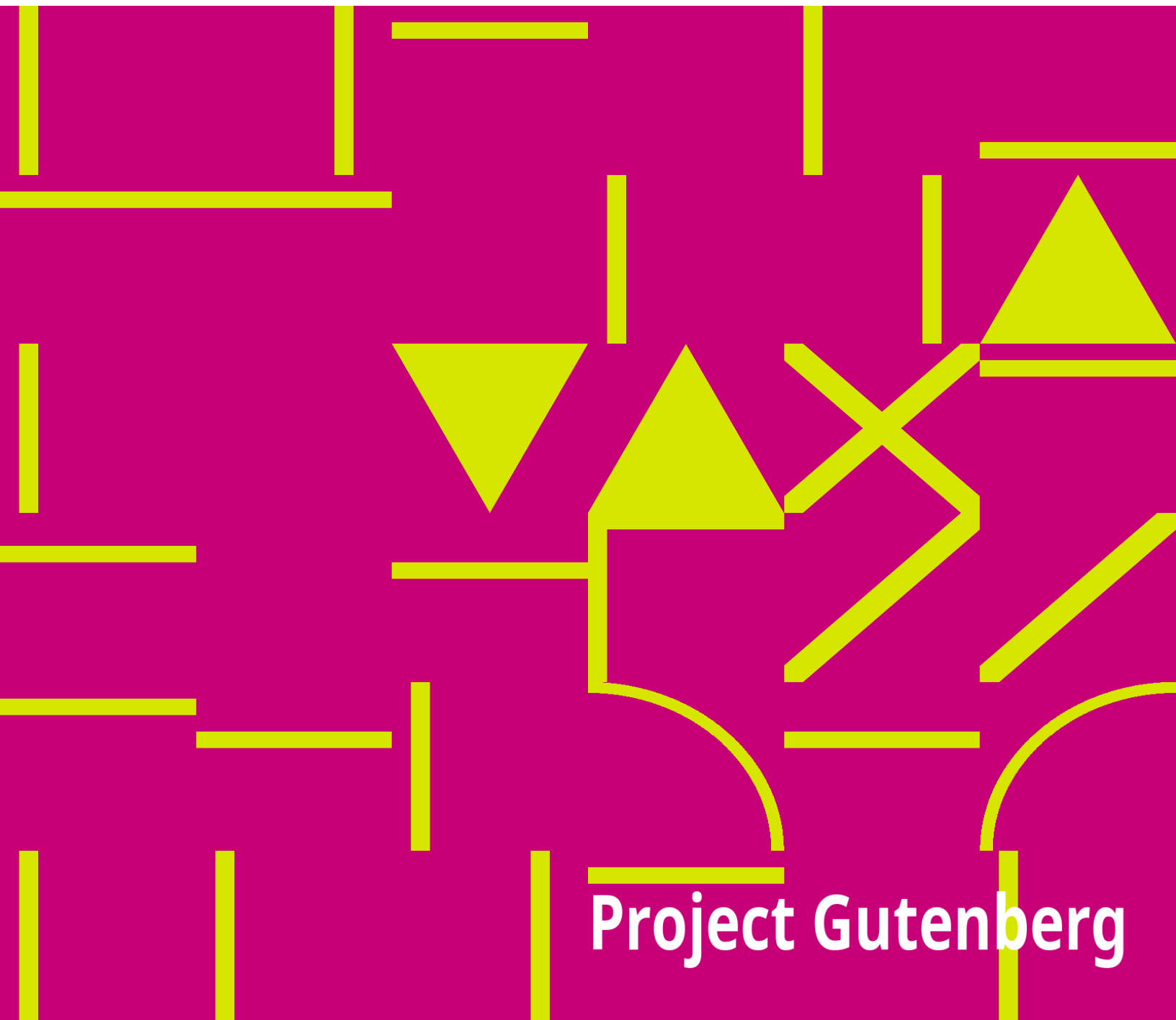


The Tree That Saved Connecticut

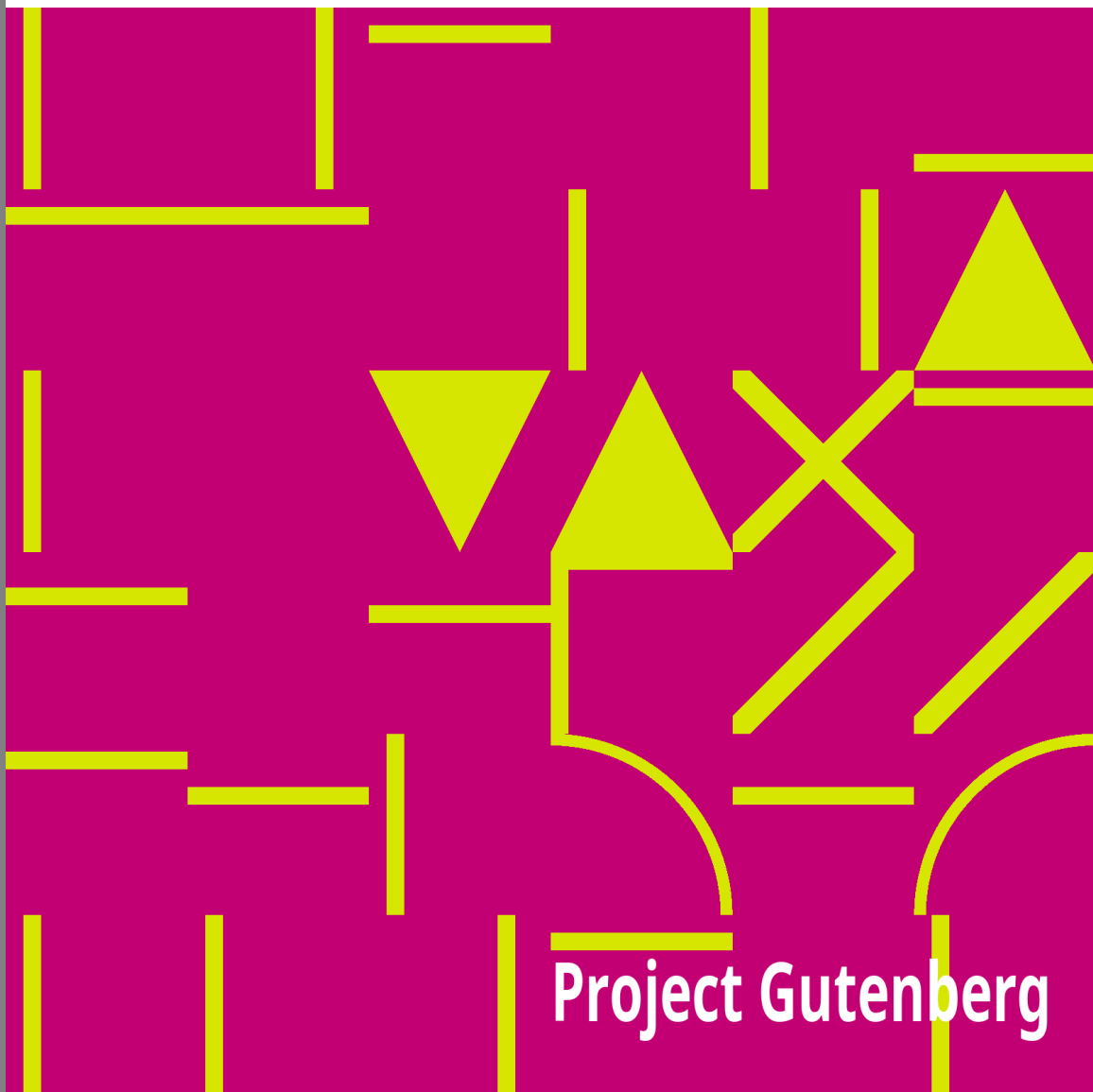
Henry Fisk Carlton and Claire Turner Zyve

The background of the lower half of the image is a solid magenta color. Overlaid on this background is a complex, abstract pattern of bright yellow geometric shapes. These shapes include horizontal and vertical lines of varying lengths, several triangles (some pointing up, some pointing down), a large 'X' shape, and two semi-circular arcs at the bottom right. The pattern is dense and non-repeating, creating a modern, graphic look.

Project Gutenberg

The Tree That Saved Connecticut

Henry Fisk Carlton and Claire Turner Zyve



Project Gutenberg

The Project Gutenberg eBook of The Tree That Saved Connecticut

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Tree That Saved Connecticut

Author: Henry Fisk Carlton

Editor: Claire Turner Zyve

Release date: April 6, 2009 [eBook #28511]

Language: English

Other information and formats: www.gutenberg.org/ebooks/28511

Credits: Produced by Colin Bell, Joseph Cooper, Diane Monico, and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE TREE
THAT SAVED CONNECTICUT ***

DRAMATIC HOURS IN COLONIAL HISTORY

The Tree That Saved Connecticut

BY

HENRY FISK CARLTON

Edited by **CLAIRE T. ZYVE, PH.D.**
Fox Meadow School, Scarsdale, New York

**BUREAU OF PUBLICATIONS
TEACHERS COLLEGE, COLUMBIA UNIVERSITY
NEW YORK CITY**

HOW TO BE A GOOD RADIO ACTOR

The play in this book has actually been produced on the radio. Possibly you have listened to this one when you tuned in at home. The persons whose voices you heard as you listened, looked just as they did when they left their homes to go to the studio, although they were taking the parts of men and

women who lived long ago and who wore costumes very different from the ones we wear today.

The persons whose voices you heard stood close together around the microphone, each one reading from a copy of the play in his hand. Since they could not be seen, they did not act parts as in other plays, but tried to make their voices show how they felt.

When you give these plays you will not need costumes and you will not need scenery, although you can easily arrange a broadcasting studio if you wish. You will not need to memorize your parts; in fact, it will not be like a real radio broadcast if you do so, and, furthermore, you will not want to, since you will each have a copy of the book in your hands. All you will need to do is to remember that you are taking the part of a radio actor, that you are to read your speeches very distinctly, and that by your voice, you will make your audience understand how you feel. In this way, you will have the fun of living through some of the great moments of history.

HOW TO FOLLOW DIRECTIONS IN THE PLAY

There are some directions in this play which may be new to you, but these are necessary, for you are now in a radio broadcasting studio, talking in front of a microphone. The word [*in*] means that the character is standing close to the microphone, while [*off*] indicates that he is farther away, so that his voice sounds faint. When the directions [*off, coming in*] are given, the person speaking is away from the microphone at first but gradually comes closer. The words [*mob*] or [*crowd noise*] you will understand mean the sound of many people talking in the distance.

Both the English and the dialect used help make the characters live, so the speeches have been written in the way in which these men and women would talk. This means that sometimes the character may use what seems to you unusual English. The punctuation helps, too, to make the speeches sound like real conversation; for example, you will find that a dash is often used to show that a character is talking very excitedly.

The Tree That Saved Connecticut

CAST

GOVERNOR TREAT
LIEUTENANT ALLYN
GOVERNOR ANDROS
CAPTAIN WADSWORTH
COLONEL BLIGH
THE SEXTON
CHARLES WILLYS
VOICE

ANNOUNCER

In the year 1661 Connecticut received from the hand of Charles the Second a very liberal charter granting to the people of the colony almost complete self-government and to the colony an enormous stretch of territory extending westward to the Pacific Ocean. For fifteen years the colony prospered under the generous charter. Then in 1676 trouble arose with the Governor of New York, Sir Edmund Andros, about the boundary line between the two colonies. Andros demanded authority over all the land west of the Connecticut River. Governor Treat of Connecticut refused to submit. Andros threatened to seize the disputed land. Treat defied him. Andros fitted out three ships, embarked a military force, and set out for Saybrooke, Connecticut. Treat ordered out the militia, garrisoned the fort at Saybrooke, and waited.

Our first scene is in the fort on the morning of July 9, 1676. The Governor is at breakfast when he hears—

VOICE [*distance*]

Sail, ho!

ALL [*closer*]

Sail, ho! Here they come; call the governor [*etc.*]

ALLYN [*coming in*]

Governor! Governor! The ships are coming into the harbor!

TREAT

Are you certain they are the ships of Governor Andros?

ALLYN

Come and see for yourself, Governor.

TREAT

Come along, then. Lieutenant Allyn, how many ships did you see? [*crowd noises swell up*]

ALLYN

Only one, sir. I didn't wait for any more.

TREAT

Ah, here we are! Give me your hand while I climb to the ramparts.

ALLYN

Yes, sir! Ah! There you are, sir!

TREAT

Good!

ALL [*in*]

There's three of 'em, Governor! That's Andros, sir. No doubt o' that!

TREAT

Yes, yes, three! Andros's ships! That's certain! [*calling*] Every man to his place! Load your muskets and prepare for action! Andros shall not land!

ALL

Aye! We'll stop him! Just let him try it!

Here, give me your ramrod. Have you got an extra flint? [*etc.*]

TREAT

Lieutenant Allyn.

ALLYN

Yes, sir!

TREAT

Load the cannon!

ALLYN

It is loaded, sir.

TREAT

Fire across the bow of the forward ship! Make them come to!

ALLYN

Yes, sir! [*calling*] Throw the cannon across the bow of the forward ship!

VOICE

Yes, sir!

ALLYN

Fire! [*a cannon shot*]

ALL

Oh! Look at it!

Yea! Good shot!

TREAT

Excellent! That will show Andros our temper!

ALLYN

The ship is coming about, sir!

TREAT

So I see! They may be going to answer our shot with a broadside! [*calling*]
Down! Every man down behind the ramparts!

ALLYN

Down! Down! Every man down!

VOICE [*distant*]

Ahoy, the fort!

TREAT

Oh! Hailing us! Well, let them hail!

VOICE

Ahoy, the fort!

TREAT

Can you see who it is, Lieutenant?

ALLYN

No, sir!

VOICE

I say there! Ahoy, the fort! Is there anyone there? Answer or we'll open fire on you!

TREAT

Hail them, Lieutenant.

ALLYN [*calling*]

Hello there, what do you want?

VOICE

Is the Governor of Connecticut Colony in the fort?

ALLYN [*low*]

What shall I tell him?

TREAT

Tell him I'm here.

ALLYN [*loud*]

Yes, the Governor is here!

VOICE

Governor Andros sends his compliments—

TREAT [*under his breath*]

Compliments, indeed!

VOICE

And requests Governor Treat to come aboard for a parley.

TREAT

Never! Tell him if Andros has anything to say let him come here, alone and unarmed, and say it!

ALLYN

Yes, sir! [*loud*] Governor Treat's compliments. He requests Governor Andros to come ashore for a parley.

TREAT

Alone and unarmed.

ALLYN [*loud*]

If he means no harm, let him come alone and unarmed.

TREAT

He'll never come!

ALLYN

They're letting a small boat down, sir!

TREAT

Indeed! Who is in it?

ALLYN

A sailor and another—

TREAT

Andros?

ALLYN

It may be, I don't know him. They're pulling away from the side now.

TREAT

If that is really Andros, he's a brave man.

ALLYN

Aye, sir, he is that. Will you go down to meet him?

TREAT

Indeed I will, if he has the courage to come ashore without a guard! I can do no less than meet him at the shore. Come along, Lieutenant. [*calling*] Stand by, men, ready for action at any moment! Lieutenant Allyn and I are going out to meet the Governor!

ALLYN

Through this portal, sir! I've unlocked it.

TREAT

Thank you.

ALLYN

The boat is just beaching, sir.

TREAT

Good! And here he comes.

ALLYN

Alone!

TREAT

Have I the honor of greeting Governor Andros?

ANDROS [*coming in, storming angrily*]

What is the meaning of this, sir? What is the meaning of this?

TREAT

I beg your pardon?

ANDROS

This—this show of force? What is the meaning of it, I say?

TREAT

Sir! This force is here to maintain the rights of this colony against the illegal aggression of New York!

ANDROS

Where is your Governor?

TREAT

Here!

ANDROS

Well, Governor, I'll have you know that I have come here in the legal performance of my duties to take command of land legally and lawfully a part of the possessions of His Grace, the Duke of York.

TREAT

I have already informed you, sir, that you shall not have it!

ANDROS

Is this rebellion?

TREAT

It is not, I assure you. But we will hold this land which is ours by right of grant from His Majesty, Charles the Second.

ANDROS

My commission as Governor of this territory comes directly from His Grace, the Duke of York.

TREAT

His Grace has no jurisdiction here.

ANDROS

Here, sir, are my orders. [*rattle of paper*]

TREAT

And here, sir, is a true copy of our charter. [*rattle of paper*]

ANDROS

My orders supersede your charter.

TREAT

Our charter is a royal grant, and cannot be superseded except for cause by due process of law.

ANDROS

I shall take possession under my orders. You can appeal to the Privy Council for redress.

TREAT

You can take possession only after every man in this fort is dead!

ANDROS

Do you still insist on this ridiculous show of force?

TREAT

I do! If you make a move to land your troops, we will open fire!

ANDROS

Very well. I shall report to His Grace that I was prevented from obeying his command by an unwarranted and illegal show of force!

TREAT

And we shall report to His Majesty that we defended our rights under our royal charter.

ANDROS

Confound your charter! I'll see to it that you lose it! Good day, sir.

TREAT

Good day!

ANNOUNCER

So Governor Andros took his departure without gaining possession of the territory he claimed. For the next ten years Connecticut continued in undisputed possession of her charter, and then on December 19, 1686, Andros was appointed Governor of all New England. News of this appointment reached Connecticut several months later.

Our next scene is at the State House in Hartford. It is June of 1687. The General Court of the Connecticut Colony is in session. As our scene opens, Governor Treat is addressing the Assembly.

TREAT

Gentlemen! I have called you here to consider a matter of grave importance to the life of this colony. As you know, His Majesty has seen fit to deprive us of our rights under our charter and has appointed a Governor who is to have supreme power over this colony and all of New England.

WADSWORTH

Your Excellency—

TREAT

Yes, Captain Wadsworth?

WADSWORTH

Let us not submit! Let us appeal to the Privy Council! We have our rights under the charter.

ALL

Yes, yes! Let us not submit!

TREAT

It is useless, gentlemen. When we are ordered to submit, we must submit or be in rebellion.

WADSWORTH

When may we expect the order?

TREAT

I was informed this very morning that an officer of Governor Andros was on his way here to take over the government of the colony, and we might expect him this very day.

WADSWORTH

Then what can we do, sir?

TREAT

We can submit—indeed we must submit to the rule of Governor Andros, but, gentlemen, we must not relinquish our charter!

ALL

No, no! We must save our charter. [*etc.*]

TREAT

But how can we save it? If I am ordered to give it up, what can I do? I have it here. It is in my possession. How can I hold it against an order to relinquish it?

WADSWORTH

Your Excellency, if it is not in your possession, you cannot give it up.

TREAT

But it is, Captain Wadsworth.

WADSWORTH

Then, sir, I move you that this Assembly forthwith take it out of your possession and intrust it to a committee for safe-keeping.

TREAT

Yes, that is possible.

VOICE

Second!

TREAT

You have heard the proposal. Those favoring—

ALL

Aye!

TREAT

Opposed—it is a vote. Will someone propose the committee?

VOICE

Your Excellency, I propose Captain Wadsworth, Charles Willys, and John Talcott.

TREAT

But Talcott is not here.

WADSWORTH

All the better, sir, since we cannot give up the charter except upon unanimous consent of the committee.

TREAT

A very good arrangement. Is there a second to the nomination for the Charter Committee?

VOICE

Second! [*loud knock*]

TREAT

Don't open until we have had the vote! All favoring—

ALL

Aye! [*knocking*]

BLIGH [*outside*]

Open, in the name of the King!

TREAT

Opposed? Carried!

BLIGH [*insistent knocking*]

Open, open, I say! Open in the name of the King.

TREAT [*over the noise*]

Captain Wadsworth, I deliver this charter into your hands for safe-keeping.

WADSWORTH

We shall keep it, sir. Never fear!

TREAT [*calling*]

Doorkeeper, open the door!

VOICE

Yes, sir!

BLIGH [*coming in*]

What is the meaning of this, sir? Why was I locked out?

TREAT

Your pardon, sir. But what authority have you, sir, to break into the Assembly of the General Court of Connecticut?

BLIGH

I have come to take over the government of this colony under the authority of Governor Andros.

TREAT

Indeed, and who are you, if we may be permitted to know?

BLIGH

Ah, of course—I have the honor to be Samuel Bligh, Colonel in His Majesty's service. Are you Robert Treat?

TREAT

I am.

BLIGH

Here are your orders! [*rattle of paper*]

TREAT

Thank you. "Hereby ordered"—yes—yes—"in compliance with mandate of His Majesty"—yes, indeed. Colonel Bligh, we are ready to turn the government over to Governor Andros.

BLIGH

Then, sir, you will deliver up the charter to me.

TREAT

What?

BLIGH

The charter! The charter—read the rest of the order, sir.

TREAT [*reading*]

"Governor Treat is hereby ordered to deliver up the forfeited charter"—but, Colonel Bligh, I cannot deliver up the charter—

BLIGH

Why not?

TREAT

Because, sir, it is not in my possession.

BLIGH

In whose possession is it?

TREAT

It has been intrusted by the General Court to a special committee.

BLIGH

Indeed—and who comprises the committee?

TREAT

The clerk will read the names of the committee.

ALLYN

May it please you, sir, the committee consists of Captain Wadsworth, Charles Willys, and John Talcott.

BLIGH

Are any of those named here?

WADSWORTH

Yes, sir!

BLIGH

Your name, sir?

WADSWORTH

Captain Wadsworth.

BLIGH

Captain Wadsworth, I order you to deliver up the charter to me.

WADSWORTH

Oh, yes, and have you an order for it there?

BLIGH

Indeed I have. Governor Treat has just read it.

WADSWORTH

May I be allowed to see it?

BLIGH

Of course. Governor Treat, will you let this gentleman read the order and be satisfied.

WADSWORTH [*rattle of paper*]

Hm, yes.—"Governor Treat—hereby ordered"—but, Colonel, this is an order upon Governor Treat!

BLIGH

Of course it is! Now are you satisfied?

WADSWORTH

I am deeply sorry, sir, I do not see how the committee can comply with this order.

BLIGH

Why not, pray—is it not properly signed and sealed?

WADSWORTH

Oh yes. Signed properly, but it is drawn against the Governor—and not against the Charter Committee.

BLIGH

Why—what—oh, this is too much! Governor Andros warned me that you would be stubborn and stiff-necked! But I'll have that charter! Here—I'll change that order—give it here!

WADSWORTH

Here you are, sir. [*rattle of paper*]

BLIGH

Hm—yes—a quill. So—now—"The Charter Committee—is hereby ordered"—there you are. Now I hope you are satisfied.

WADSWORTH

Are you satisfied with this, Governor?

TREAT

Hm—does this not seem to be a forgery, Captain Wadsworth?

WADSWORTH

It not only seems to be, sir, but it is. I saw him make an illegal change in the order. All of us saw it.

ALL

Yes, yes! We saw him.

It is a forgery! Don't obey it!

TREAT

I should say that the change invalidated the entire order!

BLIGH

What? You are trying to put me in the wrong?

WADSWORTH

Not at all, sir! You have put yourself in the wrong.

BLIGH

But—but—you forced me to make that change in the order.

TREAT

I believe, Colonel, we merely pointed out that your order was inadequate; we did not force you to commit forgery.

BLIGH

Oh, this is a trick! This is a trick! I demand the immediate surrender of the government and the charter!

TREAT

What is the will of the Assembly? Can we deliver up the government under an order which is obviously forged?

ALL

No, no! No indeed!

TREAT

The vote is against you, Colonel.

BLIGH

Andros will come himself and attend to this affair. I wash my hands of it! He'll make you pay for this day's work—and he'll get the charter! Good day!

ALL

Good day!

ANNOUNCER

Andros did come, as Colonel Bligh had threatened, but not for several months. But when he came, he came in state, with a company of soldiers, two trumpeters, and Colonel Bligh. He intended this time to get the charter, and no mistake!

Governor Treat called the General Court to assemble on the evening of October 31, 1687, to confer with Governor Andros and make one last determined stand to retain the charter even if there was no way to retain their rights under the charter.

Our next scene is at the State House in Hartford. It is evening. The sexton is preparing the room for the meeting which is about to take place.

SEXTON [*to himself*]

Now these candles, where'd I best put 'em. I cal'ate mebbe I'd better scatter 'em around the room—

WADSWORTH [*coming in*]

Good even to you, Nathan.

SEXTON

Even, Captain Wadsworth. Even, Master Allyn.

ALLYN

Good even, Nathan.

WADSWORTH

These candles, Nathan.

SEXTON

Yes, sir! I was jest a puttin' 'em around where everybody'd git a little light.

WADSWORTH

I think perhaps you'd best put them all on the Governor's table.

SEXTON

The Governor's table. Yes, sir! So—one here—and one—

ALLYN

No, no, Nathan. Put them all together at this end of the table.

SEXTON

This end by the window?

ALLYN

I think that will be best, don't you, Captain?

WADSWORTH

Of course! The Governor needs a great deal of light.

SEXTON

But, sir, the draft from the window—it may blow them out.

ALLYN

Well, well, if it does, Nathan, we'll just have to light them all again.

SEXTON

Yes, sir! Of course, sir!

WADSWORTH [*low*]

Now Allyn, seeing you are the clerk of the General Court, you can sit at the Governor's table without exciting suspicion.

ALLYN

Yes, Captain!

WADSWORTH

Best put your chair next the window.

ALLYN

Have you the charter?

WADSWORTH

Yes, I have it with me, and when Andros demands it I shall have to produce it.

ALLYN

Andros must not be allowed to get his hand on it.

WADSWORTH

That will be your duty.

ALLYN

Yes?

WADSWORTH

Willys will be waiting outside that window, next your chair. When the candles go out, grab the charter and toss it out the window. He'll put it in a safe place.

ALLYN

Where?

WADSWORTH

You know the oak in front of his house?

ALLYN

Indeed yes!

WADSWORTH

There is a hollow—high up—

ALLYN

Good!

WADSWORTH [*louder*]

Nathan!

SEXTON

Yes, Captain!

WADSWORTH

A good fire you have in the fireplace.

SEXTON

I figgered to have a good fire—it's a mite chilly this evenin'.

WADSWORTH

It may get overly warm in here before the meeting is over.

SEXTON

Aye.

WADSWORTH

I want you to stand close to that window behind John Allyn's chair.

SEXTON

Yes, sir!

WADSWORTH

Don't leave it. And the moment I say, "Sexton, it's warm in here," throw open the window. You understand?

SEXTON

"Sexton, it's warm in here," throw it open. Yes, sir, I understand.

WADSWORTH

Never mind what anyone else says. Throw it open on my signal and throw it wide open.

SEXTON

But the candles, sir—they may go out. They're right close to the window.

WADSWORTH

Never mind the candles.

SEXTON

Never mind them—yes, sir! [*trumpets sound outside*]

ALLYN

Here comes Andros. Throw open the door.

WADSWORTH

Never mind, Nathan. I'll do it. You stay by that window.

SEXTON

The window. Yes, sir!

WADSWORTH

Enter, Governor Andros.

ANDROS

Thank you. Governor Treat—I now call you that for the last time—will you show me to my place?

TREAT

Of course, sir. Captain Wadsworth, will you usher us to our places?

WADSWORTH

Right this way, Governor. We have arranged this place for you.

ANDROS

Thank you. Do we need all the candles here?

WADSWORTH

For you and the clerk. [*noise and confusion of members entering*]

ANDROS

Yes, yes! Of course! Treat, will you sit at my left?

TREAT

Thank you, sir!

ANDROS

Will you call the Assembly to order?

TREAT

Gentlemen, will you take your places. [*sound of gavel*] The Assembly will please come to order! [*quiet*] In accordance with the command of His Majesty we are met here to surrender the government of the Connecticut Colony to the Royal Governor, Sir Edmund Andros. On behalf of this Assembly, I have the honor, sir, to welcome you and assure you of our submission to His Majesty's command. We have ever been a loyal and a law-abiding people. We surrender the prerogatives of government under our charter with regret; but His Majesty commands, and we, his loyal subjects, have nought to do but obey. We are, sir, yours to command.

ALL [*cheers*]

ANDROS

Thank you, Master Treat. I am agreeably pleased at the expression of obedience. In the name of His Majesty I hereby take command of the colony of Connecticut and order it joined to the colony of Massachusetts Bay, of which you shall henceforth be a part. And now, you have only to surrender the charter to me to complete the ceremony of submission to the order of His Majesty.

TREAT

But, sir, we have signified our submission. The surrender of the charter is quite another thing.

ANDROS

How so?

TREAT

It was granted in perpetuity, to be forfeited only through due process of law.

ANDROS

Have you not been informed, sir, that a writ of quo warranto issued in the proper courts of England was tried and went by default last February?

TREAT

Last February? Indeed, sir! We had no knowledge that any action was brought against it. Who was the complainant?

ANDROS

I was!

TREAT

You, sir?

ANDROS

Indeed, you seem to have forgotten an occasion when I promised you I'd get your charter.

TREAT

No, sir! Unfortunately I still remember it!

ANDROS

I have here the original court order, declaring your charter forfeit, and I shall now trouble your Charter Committee to produce the original

document.

TREAT

One moment, sir. Has not every Englishman a right to defend his case before a court of law?

ANDROS

Of course—you had such a chance and failed to appear.

TREAT

We had no notice of the action.

ANDROS

That's not my fault.

TREAT

The court is in error, and we shall appeal.

ANDROS

Appeal all you like; but produce the charter.

TREAT

We do so under protest.

ANDROS

Ah, very well. I care not how much you protest. Once I get the charter, I can assure you, you'll never see it again.

TREAT

But, sir!

ANDROS

Produce the charter.

TREAT

Captain Wadsworth, place the charter on the table.

WADSWORTH

Here it is, sir.

ANDROS

Ah—at last!

TREAT

One moment, sir.

ANDROS

What now?

TREAT

Will you first sign the receipt for the charter, so that the committee may be protected?

ANDROS

Why, certainly, if you wish. It's no matter; but I'll do it. Give me your quill, clerk.

ALLYN

Here you are, sir—and paper.

ANDROS

Yes. Hm—"received—charter—signed"—there—

WADSWORTH

Sexton, it's warm in here!

SEXTON

Yes, sir! [*noise of window*]

ANDROS

Hey, the lights! Quick, what's happened? Lights! Lights!

ALL

The candles have all blown out!

Put down the window!

What's the matter—[*etc.*] [*exclamations continue through the scene*]

ANDROS

Put that window down! What are you trying to do?

SEXTON

Why, sir, it was warm.

ANDROS

Put it down, I say! Light those candles! What foolishness is this? Light those candles, I say! Do you hear me?

SEXTON

Yes, sir, at once, sir! [*noise of window going down*]

Here, sir, I'll light the candles. I'm right sorry, sir. Now, where did I put my flint? Ah, here it is. There you are, sir. I'm right sorry I put you out, sir. I didn't think—

ANDROS

Fool! Now, Treat, hand me the charter.

TREAT

The charter—why, sir—you had it.

ANDROS

Had it? What are you talking about?

TREAT

Why, sir! I saw you put your hand on it the moment the lights went out.

ANDROS

Indeed I did not. Give it here!

TREAT

But, sir—

ANDROS

Hey—you—Captain—

WADSWORTH

Sir!

ANDROS

Wadsworth, give me the charter!

WADSWORTH

But, sir, I gave it to you.

ANDROS

You did not!

WADSWORTH

But I have here your receipt for it!

ANDROS

Give me back that receipt!

WADSWORTH

I shall certainly do nothing of the kind, sir. I gave you the charter; you gave me this receipt for it. I have here twenty witnesses to the transaction!

ANDROS

I'm being tricked! I say I will have that charter. It's somewhere here, and I'll have it. [*calling*] Colonel Bligh!

BLIGH [*distance*]

Yes, sir!

ANDROS

Surround this place with your soldiers. Don't let a single man leave until he has been searched!

TREAT

Sir, this is illegal! You have no search warrants!

ANDROS

Indeed! I'll do it whether it's legal or not. I'll have that charter, I tell you, if I have to search every spot in this town! I'll have it, I say I'll have it.

ANNOUNCER

And so the great search began. All that night and into the next day the Governor, the Colonel, and their soldiers searched high and low for the missing charter. At last they came to the house of Charles Willys, in front of which stood the great oak in which the charter lay safely hidden.

ANDROS

Who lives here?

TREAT

This is the home of Charles Willys!

ANDROS

Indeed! One of the Charter Committee, eh?

TREAT

Yes, sir!

ANDROS

Good! Search this place inside and out, Colonel. Don't leave a thing unturned.

BLIGH

Very good, sir! Search this place, Captain—thoroughly. Tear up the floors, dig up the garden, rip the upholstery off the furniture, but find that charter!

VOICE

Yes, sir. Follow me!

ANDROS

Bring out the master of the house. The rest of you back up against this tree and don't move!

TREAT

Sir, I protest again—

ANDROS

Protest all you like. It will do you no good until you produce that charter.

TREAT

I don't know where it is. You had it, that's all I know. If you lost it, it is not our fault.

ANDROS

Silence!

BLIGH [*a little distance*]

Here's the master of the house, sir.

ANDROS

Ah, indeed! Are you Master Willys?

WILLYS

I am.

ANDROS

Where is the charter?

WILLYS

Your pardon, sir, but how should I know?

ANDROS

You were a member of the Charter Committee, were you not?

WILLYS

I was!

ANDROS

Then where is it?

WILLYS

I am informed that the charter—

ANDROS

Yes?

WILLYS

Was placed—

ANDROS

Yes—yes—

WILLYS

In your hands!

ANDROS

Sir! If you don't tell me where that charter is—

WILLYS

What then, sir?

ANDROS

Do you see this oak tree?

WILLYS

I'm not blind, sir.

ANDROS

I'll have you strung up—strung up in it, sir; I'll have you strung up in it!

WILLYS

I should hate to have such a fine tree perverted to such a purpose, sir!

ANDROS

Ah! You would! Colonel Bligh! Colonel!

BLIGH [*distance*]

Yes, Governor!

ANDROS

Send me half a dozen soldiers and a stout rope!

BLIGH

Yes, sir!

ANDROS

Ah! Now perhaps we'll get something from you. Will you tell me or will you be hanged by your thumbs from that stout limb up there until you are ready to tell me where the charter is?

TREAT

Governor Andros, I fear you have forgotten yourself in your rage. Master Willys is entitled to a trial before any such punishment can be meted out to him.

ANDROS

Silence, or I'll have you strung up with him! Gad, sir, I'll fill this oak tree with stiff-necked rebellious Connecticut men, but I'll have that charter!

BLIGH

Here are your men, sir!

ANDROS

Good! One of you climb that oak tree. Here, you, Sergeant.

VOICE

Yes, sir!

ANDROS

Give him a hand there. [*sound of starting to climb the tree*] Have the men found anything in the house, Colonel?

BLIGH

Not a thing, sir!

WADSWORTH

Look here, sir.

ANDROS

Ah, Captain Wadsworth. Have you something to say?

WADSWORTH

I have, sir.

ANDROS

Speak out.

WADSWORTH

Tell those men to stay out of that tree and I'll tell you.

ANDROS

All right, Sergeant, come down. I thought we'd get something out of them if we scared them. Well, Captain?

WADSWORTH

Sir, you have lost the charter; that is clear.

ANDROS

Where is it?

WADSWORTH

Just a minute. You have lost it. You also have given us your receipt for it; therefore you should have it.

ANDROS

And I intend to have it.

WADSWORTH

You can't. I can assure you of that, but here is what I propose. The committee is willing to turn over the receipt to you if you will stop this foolish and destructive search for something you can't find.

ANDROS

Never! Sergeant, go up that tree again. We'll string these fellows up.

WADSWORTH

Ah, very well, then. But, sir, you'll look very foolish when you report to the Privy Council that you did not get the charter, and we produce your signed receipt!

ANDROS

What?—Hm—

TREAT

Yes, indeed, Governor. How will you explain that to the King?

ANDROS

What? Why! Ah—very well then, give me the receipt and I'll leave. After all, your charter will do you no good. It's revoked.

TREAT

Exactly! That's a very sensible view to take, Governor Andros. I congratulate you.

WADSWORTH

Here is the receipt, sir.

ANDROS

Humph!

WADSWORTH

You're very welcome, sir.

ANDROS

Colonel Bligh, draw up your guard and prepare to return to Boston. [*orders and confusion*]

TREAT [*over the noise*]

My congratulations, Captain Wadsworth. A good bargain.

WADSWORTH

Indeed it was. Another foot up the tree, and the Sergeant would have had the charter.

BLIGH

Quick step, march!

ANNOUNCER

By saving the charter Connecticut preserved her claim to separate government, and in 1694 the King decided that the charter was in full legal force. It served as the fundamental order of Connecticut government down to the Revolution and until 1818, when a new state constitution superseded it.

The oak in which the charter was so well hidden was called from that time the "Charter Oak." It stood until August 21, 1856, when it fell. At sunset of that day the bells of Hartford tolled, and mourning was displayed for the historic old tree. And today interested tourists may see the spot where the Charter Oak stood and see a piece of the old tree in the State House.

*** END OF THE PROJECT GUTENBERG EBOOK THE TREE THAT
SAVED CONNECTICUT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.